

Privacy Policy

My Lucy Corp

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Introduction

At My Lucy Corp ("**LUCY**"), we respect your privacy and are committed to protecting the Information we may collect when you create an account, access or use our software application ("**App**"). We process your Information with the utmost care, ensuring that it is used only to support Eligible Students and enhance your education journey. This Privacy Policy ("**Policy**") describes our processing practices in an effort to be transparent with you. We take the obligations that are attached to this Policy very seriously and are guided in this mission by foundational privacy principles:

- **Transparency:** We work to ensure transparent data processing in our business.
- **Accountability:** We demonstrate our commitment to privacy in concrete and tangible ways.
- **Integrity:** We strive to ensure that the data entrusted to us is complete, consistent, and accurate.
- **Security:** We implement and maintain appropriate technical, administrative, and organizational measures to protect data in accordance with regulatory requirements.
- **Confidentiality:** We establish and maintain policies, procedures, and practices that limit access to data and protect against unlawful or unintentional access or disclosure. As part of our commitment to protecting the privacy of Eligible Students, educators, and Institutions, we adhere to industry best practices and continually work towards improving our privacy and security standards.

We invite you to learn more about the data practices on our platforms that enable lifelong learning. If you don't agree with the terms of this Policy, please do not create an account or use the App. By creating an account or using our App, you agree to this Policy.

Applicability and Relevant Terms

This Policy applies to all Eligible Students who utilize our App, as well as to the parents and legal guardians of minors, thereby ensuring comprehensive protection and providing clear guidelines on how we manage Eligible Students' data and how students and their parents can engage and exercise their rights regarding their personal Information. Additionally, this Policy applies only to Information we collect or receive through your use of our App - or through email, text, and other electronic communication you send through or in connection with our App and does not extend to information collected offline or through any Client website, including websites you may access through our App ("**Public Information**").

Other websites, apps, and third-party services may have their own privacy policies. We strongly recommend reviewing those policies before providing any Information.

For the purpose of this Policy, the following definitions are defined in accordance with the Family Educational Rights and Privacy Act ("**FERPA**"), as outlined below:

- **Educational Records:** Records that contain Information directly related to a student and are maintained by an educational agency or institution, and which, with certain exceptions, are protected from unauthorized disclosure and use under statute.

- **Directory Information:** Information contained in Educational Records that is not considered harmful or an invasion of privacy if disclosed with notice to the student and parent. This may include the student's name, address, telephone number, and date of birth and does not include social security number and ID number.
- **Personally Identifiable Information ("PII"):** All Information that, with or without other information, can uniquely identify a student and is not classified as Directory Information. This category might include more sensitive information, like academic records, financial data, and others.
- **Eligible Student:** The individual whose personal data is being collected or processed. In a FERPA context, this typically refers to the student or, in the case of minors, the parent/guardian.
- **Consent:** The explicit, informed, and voluntary agreement by the Eligible Student (or their parent/guardian) to the collection, processing, and disclosure of personal data.

In this Policy, we also use the following terms:

- **Information:** Educational Records, Directory Information, and PII collectively.
- **Clients/Institutions:** Universities, schools, and other educational agencies public or privacy that contract with us to utilize our products and services. Clients entrust us with managing and processing data, and we provide tailored solutions to support their operational, administrative, and academic functions.

Information We Collect

To provide our services to you, we may collect Information as follows:

- During account creation and onboarding, we collect personal details about Eligible Students such as first name, last name, Institution email address, Institution, major [as applicable], minor [as applicable], and advisor's name.
- We receive Information about Eligible Students directly from Clients, which helps the App to customize solutions for Eligible Students users, including student transcript and internship information.
- We collect feedback from Eligible Students and Clients during our workshops and pilots to help us improve our services.
- When you use our services, we collect data through Eligible Students' input and feedback. This data is recorded and stored to help Eligible Students later view their history and return to previous questions within the App.
- We collect Information when Eligible Students and Clients initiate communication with us, such as through their inquiries, support requests, and feedback, including email address and phone number.
- When Eligible Students and Clients visit, use, or interact with the services, we receive the technical and operational data about the visit, use, or interactions, as described:
 - Access and Log Data: Information that a browser or device automatically sends during the use of our services. Log data may include Internet Protocol ("IP") address, browser type and settings, and the date and time of the App usage.
 - Device Information: Information about the access device, including name of the device, operating system, device identifiers, and browser used. Information collected may depend on the type of device used and its settings.
- We may also collect Information when Eligible Students ask questions on the "**Public**" mode

of the App. Don't worry, we will anonymize the Information, but any inputs and questions entered may be visible to others.

Whenever possible, we strongly advise users to avoid disclosing sensitive data - such as health, financial, or racial and ethnic details - unless it is strictly necessary.

Cookies and Tracking Technologies

We use technologies to track your App usage across our services and third-party sites (behavioral tracking). This includes:

- **Cookies:** Small files that gather data like your browser type, time spent on our site, and traffic Information. You can manage your cookie settings in your browser (see <http://www.allaboutcookies.org/manage-cookies/index.html>).
- **Web Beacons/Pixel Tags:** Pages of the App may contain small electronic files known as web beacons (also referred to as clear gifs, pixel tags, and single-pixel gifs). These are invisible tools that record page views, email opens, and link clicks.

These tracking tools help us enhance security, improve navigation, and optimize our services.

How We Use Your Information

Under FERPA and other applicable laws and regulations, we handle Information on behalf of Clients and comply with the rigorous regulatory standards as imposed on Institutions, ensuring that data is accessed and used strictly for educational purposes in support of academic success. Lucy only accesses and shares Eligible Students' data with authorized individuals or entities as permitted by our Clients. Additionally, we follow all Client policies and requirements on data access and sharing and maintain the same level of confidentiality as they do to uphold Eligible Students' rights and privacy. Because we operate within Client policies and procedures, we encourage users of the App to review those policies in addition to this Policy, which only describes Lucy's practices.

We have provided the following summary to help you understand how we use the information we process through the App and the relationship between our users and product.

- **Provide services:** To provide our App to users. We also use Educational Records and PII to support our Client's educational activities, help administer their programs, and enhance the students academic journey.
- **Personalization:** To personalize the student user's learning experience and provide tailored responses.
- **Communication:** To communicate with you, including responding to your inquiries and feedback.
- **Legal Compliance:** To comply with legal obligations and ensure the security of our services.
- **Improvement and Analytics:** To analyze usage trends, improve and maintain our products, ensuring a better experience for users. We also use Information for our internal business purposes, including for developing new offerings, initiatives and services for the App.
- **Contract:** Carry out our obligations and enforce our rights arising from any contracts entered into between us.

Sharing and Disclosure of Information

We recognize it's important to you to know more about how we share your Information. We share information only as described in this Policy. We also do not sell or rent Information to outside third parties.

- **Third-Party Service Providers:** We may share your information with authorized third-party service providers for the sole purpose of providing you with our services. We rely on trusted third-party service providers, AWS, Firebase, OpenAI, and Perplexity - to store data and improve our services. OpenAI and Perplexity process data to generate responses, retaining Information only temporarily. AWS and Firebase securely store data. We do not permit our third-party service providers to use the Information we share with them for their own advertising or marketing purposes or for any other purpose other than in connection with the services they provide to Lucy.
- **Account Administrators:** When you open an account with the App, administrators of your Institution account may access and control your App account, including your Information.
- **Legal Compliance:** We may share your Information in order to comply with legal obligations, regulatory requirements, or respond to lawful requests from regulatory authorities.
- **Consent:** We may share Information with third parties with your consent.
- **Enforce contracts:** We may share Information to enforce our rights arising from any contracts entered into between you and us, including our Terms of Use and applicable policies.
- **Protect rights:** If we believe disclosure is necessary or appropriate to protect the rights, property, or safety of the App, our Clients, you, or others.
- **Sale or business transaction:** We may disclose or transfer your Information to a third party in the event of any reorganization, merger, sale, joint venture, assignment, transfer or other disposition of all or any portion of our business, assets or stock (including in connection with any bankruptcy or similar proceedings).

User Rights

Your data, your rights. We provide you with several ways to control your information.

- You may change some of your information by editing your student profile at our App. You may also request that we modify or delete your information by emailing us at thomas.perez@my-lucy.com or submitting a help desk ticket through Lucy. We will respond to your request, when permitted by law and subject to exceptions, within 45 days
 - We advise you that we cannot delete your information except by also deleting your user account, and we may not accommodate a request to change or delete information if we believe the change or deletion would violate any law or legal requirement or cause the information to be incorrect.
 - If you delete your entries in the "Public Interactions" section of the App, copies of your entries may remain cached or viewable in our App at "Conversation History". Proper access and rules of the App are governed by our Terms of Use.
- You may appeal decisions where we deny your deletion request.
- You have the right not to be discriminated against for the exercise of your privacy rights.
- Parents and educators may review information collected from children, request deletion of

this information, or request no further collection or use of this information by contacting us at thomas.perez@my-lucy.com.

- Whenever we process data from individuals under 18, we will notify their parents or legal guardians in compliance with FERPA.
- When a student turns 18 years old, or enters a postsecondary institution at any age, the rights under FERPA transfer from the parents to the Eligible Student.

If you require access to Information not otherwise available through any of the mechanisms described above, please contact us at thomas.perez@my-lucy.com or submit a help desk ticket through the App, and we will respond to your request.

Children's Privacy

Lucy is not intended for use by children under the age of 13 years of age. If you believe a child under 13 has created an account in our App, please contact us immediately at thomas.perez@my-lucy.com and provide us any information about it, including, if possible, name and email address. We will investigate any notification and, if appropriate, delete the Information from our systems. If you are between the ages of 13 and 18 years old, you must have permission from your parent or guardian to use our services.

Links to Other Websites

Our App may contain links to third-party websites that allow you to leave our App. The links to third-party websites or locations are for your convenience and do not signify our endorsement of such third parties or their products, content, or websites. Please be aware that the terms of this Policy do not apply to these outside websites or content, or to any collection of data after you click on links to such outside websites.

Security and Retention

Lucy takes reasonable steps to help protect your information in an effort to prevent unauthorized access, use, or disclosure. We implement commercially reasonable technical, administrative, and organizational measures to protect information from loss, misuse, and unauthorized access, disclosure, alteration, or destruction. However, no Internet or email transmission is ever fully secure or error-free. The safety and security of your information also depend on you. Where you have chosen a password for access to our App and you are responsible for keeping this password confidential. We ask you not to share your password with anyone. In addition, we are not responsible for disclosure that comes as a result of your circumvention of privacy settings or security measures contained on the App.

We'll retain your Information for only as long as we need in order to provide our service to you, or for other legitimate business purposes such as resolving disputes, safety and security reasons, complying with our legal obligations, or improving our services. How long we retain Information will depend on a number of factors, such as the amount, nature, and sensitivity of the information, the potential risk of harm from unauthorized use or disclosure, our purpose for processing the information, and any legal requirements.

Additional information for users in Europe

This section of the policy applies to Lucy's users that are located in the European Economic Area (EEA), Switzerland or the United Kingdom (UK). Lucy processes your personal data in accordance with European laws and regulations, such as the General Data Protection Regulation (GDPR) and UK General Data Protection Regulation (UK GDPR).

- **EU Representative:** We are registered [or have our European Representative], and we can be contacted using the details provided in the "Contact Information" heading.
- **Legal bases for processing:** If you're located in the EEA, Switzerland, or the UK, we must have a legal basis for collecting, using, and disclosing your information. The legal basis we rely on depends on the specific data and the context in which it's processed.
 - Generally, we process your information under the following legal grounds:
 - **Contractual Necessity:** We require your information to provide the services and to fulfill our obligations under our Terms of Use. This includes activities like creating and maintaining your account, troubleshooting any issues with our services, and granting you access to our App.
 - **Legitimate Interests:** We use your information based on our legitimate interests to deliver a useful and personalized service. This may involve analyzing usage data to make better predictions and provide personalized responses. We ensure that our legitimate interests do not override your rights.
 - **Consent:** When you provide consent, you allow us - and our third-party partners - to use your information in specific ways. This might include informing you about new features or offers, and predictive analytics purposes related to your use of the App. If you consented to our use of your information, you may withdraw that consent at any time by emailing thomas.perez@my-lucy.com.
 - **Legal Obligations:** We process your data as necessary to comply with legal requirements, such as responding to law enforcement requests and retaining records for legal compliance.
- **Cross-border data transfers:** By signing up to use the App, you understand and agree that we will process your information in the United States. We may transfer and store your information to countries where our service providers are located. Please note that some of these countries may have data protection laws that are different from your country.

Changes to This Privacy Policy

Things change, and we may need to update our Policy from time to time. The date at the top of the Policy represents the last time that the Policy was updated. You are responsible for periodically visiting this Policy to check for any changes, and by continuing to use the App, you are agreeing to the terms of the then-current Policy.

Contact Information

If you have any questions or concerns about this Policy, please contact us at thomas.perez@my-lucy.com.

My Lucy Corp.
926 S 46th St
Philadelphia, PA 19143
United States of America
Phone: +33 (0) 6 51 63 20 91

Our local representative in Europe is .